> Nimmy Parecadan has the sole right to ownership and possession of the Property free and clear of any claim of right to ownership or possession of Das Pollayil, and judgment creditors have no right to sell the property to satisfy any judgment lien against Das Pollayil arising from the judgment herein.

Pursuant to Code of Civil Procedure, § 720.390:

> At the conclusion of the hearing, the court shall give judgment determining the validity of the third-party claim and may order the disposition of the property or its proceeds in accordance with the respective interests of the parties. Subject to Section 720.420, the judgment is conclusive between the parties to the proceeding.

Because the above-mentioned judgment from the Superior Court of California, Alameda County, is binding on the plaintiffs here, the application must be **denied**.

10. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC

FILED BY: DAVE & BUSTER'S MANAGEMENT, LLC
TENTATIVE RULING:
Introduction

Before the Court is Defendant Dave and Buster Management LLC's (DnB or Defendant) Motion To Compel Plaintiff Joseph Wainauskas's individual claims to binding arbitration, and stay the representative PAGA claims in this civil action. The Motion relates to Plaintiff's Complaint for one solely representative PAGA cause of action, purposefully excluding Plaintiff's individual PAGA claim.

For the reasons stated below, **Plaintiff shall file an amended complaint by August 20, 2026**. **Parties to appear to discuss a new briefing schedule based on the amended complaint.**

Procedural Background

This case is about a class action employment lawsuit based on wage violations from May 15, 2018, until the date of class certification. (Complaint at ¶ 20 and generally.) Plaintiff filed her complaint on November 8, 2022. Plaintiff filed a Notice of Hearing on August 23, 2023, which provided if non motion to compel arbitration is filed by the November 29, 2023, CMC, the Court will consider the Defendant to have waived their rights to arbitration. Defendant EVLO filed their Motion to Compel Arbitration on November 28, 2023.

Factual and Procedural Background

Plaintiff worked for Defendant as a non-exempt Service Support employee at Defendant's Long Beach, California location from November 12, 2023, to June 3, 2025. (Complaint ¶ 1.)

On November 7, 2025, Plaintiff filed the operative pleading in this Court, styled the "Representative Action Complaint." The complaint alleges a single cause of action for civil penalties under the Private

Attorneys General Act, Labor Code section 2698 et seq., brought on behalf of the State of California and other aggrieved employees. ((Complaint ¶¶ 17-27.) Plaintiff did not plead a class action, did not plead an individual PAGA claim for himself, and did not seek any individual recovery. The prayer for relief seeks only PAGA civil penalties, attorneys' fees, and costs. (Id. at ¶¶ A-C.)

Defendant's Motion asserts that Plaintiff signed a mutual arbitration agreement during onboarding on November 3, 2023. (Walters Decl. ¶ 18.) The Agreement includes a "PAGA Individual Action Requirement" stating that the parties "agree to arbitrate PAGA claims on an individual bas[i]s only" and that "any claim by [y]ou under PAGA to recover your unpaid wages or other individual relief must be arbitrated under this Agreement." (Id., Ex. D [Arbitration Agreement], ¶ 5.) The same provision separately states that if the PAGA Individual Action Requirement is found "invalid, unenforceable, unconscionable, void or voidable," then "the PAGA action must be litigated in a civil court of competent jurisdiction—not in arbitration." (Id.) The Agreement's delegation clause expressly "does not apply to the … 'PAGA Individual Action Requirement,'" leaving questions about the individual-action requirement for the Court. (Id. at ¶ 1.)

Defendant filed this Motion on December 15, 2025, seeking to compel arbitration of "Plaintiff's individual PAGA claims" and to stay the representative claims pending that arbitration.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Duffens v. Valenti* (2008) 161 Cal.App.4th 434, 443.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (Id. [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability…." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Headless PAGA Doctrine

The Private Attorneys General Act of 2004 (Lab. Code, § 2698 *et seq*.) ("PAGA") has served as a vehicle for employee-plaintiffs to pursue civil penalties for Labor Code violations on a representative basis. California courts have recently placed renewed focus on the standing requirements for PAGA claims, particularly in cases where the named plaintiff does not pursue his individual PAGA claims. This emerging judicial doctrine is referred to as a "Headless PAGA Claim." A Headless PAGA Claim arises when a plaintiff brings a representative action under PAGA only for penalties associated with violations against other aggrieved employees and not for their own individual PAGA claim.

The Appellate Courts are split as to whether an employee may bring a Headless PAGA Claim to bypass arbitration of the employees individual claim. (See *Balderas v. Fresh Start Harvesting, Inc*. (2024) 101 Cal.App.5th 533, 536-537; *CRST Expedited, Inc. v. Superior Court* (2025) 112 Cal.App.5th 872, 883, review granted September 17, 2025, S292005; Compare with *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, 1005.)

<u>Analysis</u>

Defendant's Initial Burden

Parties moving to compel arbitration "may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.)

Defendant provides an electronically signed copy of the Arbitration Agreement. (Walters Decl., Ex. D.) As such, Defendant has met its initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Complaint Alleges an Individual PAGA Claim

Plaintiff posits that he has not pled an individual PAGA claim, has not sought any personal recovery on his behalf, and has not asked this Court to adjudicate anything on his own behalf. (Opposition at p. 3: 18-20.)

Plaintiff cautions the Court not to insert a missing individual PAGA according to *Rodriguez*. (Opposition at p. 4: 21-23; citing *Rodriguez v. Packers Sanitation Servs. Ltd., LLC* (2025) 109 Cal.App.5th 69, 80, review granted May 14, 2025, S290182.) The Complaint in this case is different because in Rodriguez the operative complaint omitted the words "individual" and "individually" and intentionally plead allegations as , "JOSE A. PARRA RODRIGUEZ, in a Representative Capacity only and on behalf of other members of the public similarly situated." (*Rodriguez* supra 109 Cal.App.5th 69, 77.)

This Complaint is not pleas with the same intentionality and attention to detail. The Complaint alleges that Plaintiff is entitled to an award of civil penalties on behalf of themselves, the State of California, and similarly Aggrieved Employees of Defendants. (Complaint ¶ 26.) The Complaint further alleges that Plaintiff seeks an award of reasonable attorney's fees and costs pursuant to California Labor Code section 2699, subdivision (g)(1). (Complaint ¶¶ 27.) These allegations plead both individual and representative claims.

From its Opposition Plaintiff has made clear his intention is to plead a Headless PAGA claim, despite his failure to do so in the Complaint. The Court has discretion to allow Plaintiff's by adding or striking out the name of any party. In the furtherance of justice, the Court grants Plaintiff leave to amend in order to remove the individual component of the sole PAGA claim in his Complaint.

Plaintiff is granted 15 days from the date of the hearing.

<u>Conclusion</u>

As analyzed above, **Plaintiff shall file an amended complaint by August 20, 2026**. **Parties to appear to discuss a new briefing schedule based on the amended complaint.**

11. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
AN ORDER OF DISMISSAL AND/OR ORDER FOR TRANSFER OF VENUE
FILED BY: DISCOUNT COURIER SERVICES, INC.
<u>*TENTATIVE RULING:*</u>

Defendant's motion to transfer venue is **<u>continued</u>**, *sua sponte,* to September 16, 2026 at 9:00 a.m. for supplemental briefing from the Plaintiff, as set forth below.
This is a putative class action and representative action under California's Private Attorneys General Act alleging wage and hour violations. Plaintiff Luis Gomez Pastrana, a former courier employed by Defendant Discount Courier Services, Inc. (DCS), filed a First Amended Complaint on December 11, 2025, asserting nine causes of action for various violations of the Labor Code.

On January 20, 2026, DCS filed a Motion to transfer venue of this action to Orange County. DCS's moving papers asserted the existence of a venue selection provision in Plaintiff's employment contract, but did not attach the contract. DCS's Chief Executive Officer, Omar K. Elkabbara, submitted a declaration stating that he was "aware that Luis Gomez Pastrana signed a written agreement requiring venue of this action in Orange County, California," without further elaboration.

On July 23, 2026 Plaintiff filed an opposition asserting, among other things, that DCS failed to establish the existence or enforceability of a venue selection clause through admissible evidence, noting that Elkabbara apparently lacked personal knowledge of any contract, and DCS had failed to produce the writing itself. Plaintiff pointed out that the Court could not determine the venue provision's scope or applicability to this case without reviewing the contract.

On July 29, 2026 DCS filed a reply brief accompanied by a Supplemental Declaration of Omar K. Elkabbara attaching a written document entitled Independent Contractor Agreement, and attaches a copy as Exhibit A. The agreement contains a provision captioned "Venue" stating: "In any court litigation arising out of this agreement, venue is in the Superior Court of the State of California, County of Orange."

The general rule of motion practice . . . is that new evidence is not permitted with reply papers . . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .'" (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) If the evidence is permitted, the other party should be given the opportunity to respond. (*Id*. at p. 1538.)

Accordingly, the hearing is **<u>continued</u>** to September 16, 2026 at 9:00 a.m. Plaintiff may file a supplemental brief addressing the enforceability of the venue selection clause no later than September 2, 2026. The brief shall not to exceed 10 pages, exclusive of exhibits.